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D.A. Attacked for Racist Jury Selection

PROSECUTION WITNESSES EXPOSE HUEY'S FRAME-UP—B.P.P. LEADER CONFIDENT OF ACQUITTAL

(Oakland, Calif.) - "I am not just predicting acquittal. There is such a preponderance of evidence in my favor that I am telling you I will be acquitted," a beaming Huey P. Newton told a press conference here earlier this month.

Announcing that he will take the witness stand in his own defense in the trumped-up Kathleen Smith murder trial, Huey declared that "it is high time the truth comes out. As the trial unfolds," he continued, "we will see that the government conspiracy that started against me 12 years ago is continuing."

The Black Panther Party president's statement was made two days before Alameda County Deputy District Attorney Thomas Orloff was forced to rest the prosecution's "case" against Huey. The D.A.'s case was based on the perjurious testimony of a Black prostitute and a Black pimp-drug dealer, and several members of the Oakland Police Department (OPD), including a Black vice squad officer who admitted in open court that he has a longstanding hatred of Huey.

At the press conference, Huey charged Orloff with racism in selecting the jury of nine women — seven of whom are White and over 50 — and three men. One of the men is the sole



Black Panther Party President HUEY P. NEWTON at recent press conference.

Black juror.

"I would like to point out to the community that I am facing a life imprisonment charge," Huey said, "but even with my life at stake,

Orloff has denied me a jury of my peers.

"I think the people on the jury should be offended because Orloff feels that they will be

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A.I.M. LEADER'S FAMILY KILLED IN ARSON ATTACK

(Minneapolis, Minn.) - Leaders of the American Indian Movement (AIM) here are having chemical tests made to determine if the fire that killed the wife, four children and mother-in-law of AIM national chairperson John Trudell in Nevada last month was deliberately set.

The incident, which local people believe was an arson attack, took place on the Duck Valley Paiute-Shoshoni Reservation in northern Nevada in the early morning hours of February 12. Trudell, who serves as organizer of the Minnesota Citizens Review Commission on the FBI and coordinator of the Leonard Peltier Defense Committee, was in Washington, D.C., at the time conducting an around-the-clock vigil at the U.S.

Supreme Court.

Participants in the vigil were awaiting a decision from the high court on the case of Peltier, an AIM leader who was falsely convicted of killing two FBI agents on the Pine Ridge Reservation in South Dakota two years ago.

AIM, the Minnesota Citizens Review Commission on the FBI, Women of All Red Nations (WARN) and the International Indian Treaty Council have called for an independent investigation of this fire. The Native American community believes the FBI, which has threatened Trudell and his family on several occasions, cannot and should not be allowed to investigate the fire.

Many people believe the attack

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BLACK ATTORNEY: "COURTS OPPRESS BLACK PEOPLE"

(Oakland, Calif.) - A Black woman attorney here who formerly worked in the Alameda County Public Defender's office has charged that the American legal system is used to oppress Black and poor people.

In a recent interview with THE BLACK PANTHER, Julia Blackwell, a longtime friend of Huey P. Newton, discussed the kind of treatment that Black people receive in the courts and the problems that Black men and women have who want to be lawyers.

Julia, or "C.C." as she is known to her family and friends, has been a lawyer since 1973. She attended Hastings College of Law in San Francisco.

From 1975 until 1978, she worked in the public defender's

office, which provides legal counsel for people who are too poor to hire attorneys of their own. Most of the public defender's clients are Black, Native American, Chicano, poor White and other minority people.

While she worked for the public defender's office, Julia said she was involved in many cases in which "young Black men, with no skills" received harsh jail terms.

On the other hand, Julia said that Whites, especially those with strong, supportive families and job skills, are given more leniency when convicted of a crime.

The racist legal treatment received by Black people is made worse, Julia went on to explain, by the fact that there are "few

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